

Manno Singh v. State of U.P. & Others

Allahabad High Court · Single Judge · 11 September 2014 · WRIT - A No. 23388 of 2012 · **Writ petition allowed; family pension directed to be paid to the first (legally wedded) wife**

HEADNOTE

Not a Supply Code case — a family-pension dispute between a first and second wife of a deceased municipal employee under the U.P. Nagar Palika (Non-Centralized Service Retirement) Benefits Regulations, 1984, turning on the definition of 'family' and the invalidity of a second marriage under the Hindu Marriage Act, 1955. Two Allahabad High Court electricity-board pension precedents (*Shakuntala Devi v. Executive Engineer, Electricity Transmission-I, U.P. Electricity Board*; *Poonam Devi v. Chief Engineer, Electricity Board*) are cited only as persuasive analogues on the general 'nomination cannot defeat legally wedded wife's pension claim' principle, with no engagement with any Supply Code or Electricity Act provision.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::family-pension-dispute

Family pension dispute between two wives of a deceased municipal employee — no Supply Code content; cites electricity-board pension cases only as general persuasive analogues

HOLDING

The second marriage, contracted after the Hindu Marriage Act, 1955 came into force, was null and void; the second wife does not fall within the definition of 'family' under Regulation 2(f), and a nomination in her favour cannot defeat the legally wedded first wife's entitlement to family pension under Regulation 7. ¶ [unnumbered order](#)

FLAG Recorded for completeness of the source corpus; cites electricity-board pension precedents (*Shakuntala Devi*, *Poonam Devi*) only as general analogues, not for any Supply Code holding — no Electricity Act/Supply Code provision is engaged.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Shakuntala Devi (Smt.) v. Executive Engineer, Electricity Transmission Ist, U.P. Electricity Board, Allahabad</i> (2001) 1 U.P.L.B.E.C. 8691 Allahabad High Court	A nomination in favour of a second wife cannot defeat the legally wedded first wife's claim to retiral benefits, provident fund, and Dying-in-Harness appointment.	followed (as general persuasive analogue; not an electricity/Supply Code holding)	Court	followed
<i>Poonam Devi (Smt.) v. Chief Engineer, Electricity Board and others</i> (2004) 3 U.P.L.B.E.C. 2292 Allahabad High Court	Similar view as <i>Shakuntala Devi</i> on the legally wedded wife's entitlement over a nominee second wife.	followed (as general persuasive analogue; not an electricity/Supply Code holding)	Court	followed